

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

**IN RE: BRIAN B. WILCOX
License No. 068-0000514**

DOCKET No. 2010-467

STIPULATION AND CONSENT ORDER

NOW COMES the State of Vermont, by and through its State Prosecuting Attorney Edward G. Adrian and Brian B. Wilcox who hereby stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Clinical Mental Health Counselors pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65 and; the rules of the Board and the Vermont Office of Professional Regulation.
2. Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession is unprofessional conduct upon which the administrative law officer can base disciplinary action. 3 V.S.A. §129a(a)(3).
3. Performance of unsafe or unacceptable patient or client care or failure to conform to the essential standards of acceptable and prevailing practice is unprofessional conduct. 3 V.S.A. §129a(b)(1) and (2).
4. The Board may refer to the American Counseling Association (ACA) "Code of Ethics and Standards of Practice," . . . As guidelines to the standards of practice for the professions subject to these rules. Although not in themselves additional grounds of unprofessional conduct, these ethical codes establish the standard of practice and fitness within the profession and are incorporated by reference into these rules. Administrative Rules for the Board of Allied Mental Health Practitioners. Rule 6.6.
5. Counselors maintain records necessary for rendering professional services to their clients and as required by laws, regulations, or agency or institution procedures. Counselors include sufficient and timely documentation in their client records to facilitate the delivery and continuity of needed services. Counselors take reasonable steps to ensure that documentation in records accurately reflects client progress and services provided. If errors are made in client records, councilors take steps to properly note the correction of such errors according to agency or institutional policies. ACA Code A(1)(b).
6. Counselors recognize that support networks hold various meanings in the lives of their clients and consider enlisting the support, understanding, and involvement of others (e.g. religious/spiritual/community leaders, family members, friends) as positive resources, when appropriate, with client consent. ACA Code A(1)(d).
7. Counselors who are members of interdisciplinary teams delivering multifaceted services

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
National Life Building
Second Floor North
Montpelier, VT
05620-3602

to clients, keep the focus on how to best serve the clients. They participate in and contribute to decisions that affect the well-being of clients by drawing on the perspectives, values, and experiences of the counseling profession, and those of colleagues from other disciplines. ACA Code D(1)(c).

Statement of Facts

8. Brian B. Wilcox (the "Respondent") of Morrisville, Vermont is a licensed clinical mental health counselor holding license number 068-0000514, issued by the State of Vermont. This license was issued on or about November 1, 2000 and is set to expire on January 31, 2011.
9. At all relevant times the Respondent was employed by the University Health Center (the "Facility") in Burlington, Vermont. The Respondent's supervisor at the Facility was Dr. B.R. On or about July 22, 2010 B.R. reported to OPR that the Respondent was terminated largely because of his "long-standing history of non-clinical related problems (late paperwork, sloppy paperwork, poor attitude, etc.)."
10. In one instance the Respondent's documentation of a patient's evaluation was so poor that it created safety issues because the poor paperwork created problems with determining the patient's psychological needs or where to locate him.
11. The Respondent admitted in an interview on or about January 24, 2011 that his failure in respect to the patient was the incomplete evaluation and "not writing that out in a narrative form and communicating it to others because I thought he was going to be there two days later." The Respondent also admitted that he should have finished the narrative evaluation for the patient.
12. By engaging in the above referenced behavior the Respondent committed unprofessional conduct because he failed to conform to the essential standards of acceptable and prevailing practice by not adequately completing the evaluation and failing to communicate the needs of the patient to other practitioners in the patient's interdisciplinary team.

Charges

By committing the above act(s), circumstance(s) and/or omission(s), the Respondent has engaged in unprofessional conduct by violating the Vermont Statutes and Rules of the Board, as enumerated above in paragraphs 2-7.

Understandings

13. Respondent understands that the Board must review and accept the terms of the Stipulation and Consent Order. If the Board rejects any portion of the same, it shall be void in its entirety.
14. Respondent has reviewed the Stipulation and Consent Order, agrees that it sets out

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
National Life Building
Second Floor North
Montpelier, VT
05620-3602

the entire agreement of the parties, and is freely and voluntarily entered into.

15. Respondent waives any notification period and agrees to have this document reviewed by the Board during its next meeting. Respondent specifically waives any claim that presentation of this stipulation to the Board would prejudice his right to a fair and impartial hearing should the Board reject this stipulation.
16. Respondent is not under the influence of any drugs or alcohol at the time he signs this Stipulation.
17. Respondent voluntarily waives his right to appeal the decision and order of the Board entered under this stipulation.
18. The Respondent has had the opportunity to consult with able and competent counsel in respect to this matter.
19. The Respondent acknowledges that he understands that this document and its attachments is a public record and may be used for any legal purpose. Further, that this document and its attachments will be posted on the Vermont Secretary of State's website as a disciplinary decision of the Vermont Board of Dental Examiners.

ORDER

Based on the Stipulation above it is **ORDERED AND ADJUDGED** as follows: Respondent's license to practice as a clinical mental health counselor shall be **CONDITIONED** for a **PERIOD OF ONE (1) YEAR**. The **CONDITIONS** on Respondent's license are as follows:

(1) **Supervision.**

Respondent shall permit his practice to be supervised by the Board through another mental health practitioner approved by the Board. The parties have agreed, subject to Board approval that Cynthia Hennard, MA, LCMHC, LADC can serve as the Respondent's supervisor for purposes of this stipulation. Ms. Hennard has been a LCMHC since 1999. Ms. Hennard will also be Respondent's supervisor in his new position at the Johnson State College Counseling Center. Ms. Hennard is willing to meet with the Respondent at least once per week for face-to-face consultation and will provide for substitute consultation when she cannot meet.

a. A supervision plan shall be submitted to the Board for review and it shall include:

- 1) the goals and objectives of the supervision, with an emphasis on the Respondent's record keeping and ability to work in an interdisciplinary setting; 2) identification of professional resources to be employed; and 3) description of how the Respondent's clinical work will be assessed.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
National Life Building
Second Floor North
Montpelier, VT
05620-3602

- b. The supervisor shall create and submit quarterly reports concerning the progress of the Respondent in relation to the goals and objectives outlined in the supervision plan.

(2) Continuing Education

Within one (1) year, the Respondent shall complete six (6) credits in continuing education on record keeping. This course work shall not be used to fulfill any other educational requirement

D. Respondent shall bear the cost of compliance with the steps which Respondent has agreed to undertake pursuant to this Consent Order.

E. If Respondent violates the terms of this Consent Order, the Board, after giving Respondent notice and an opportunity to be heard, may take further disciplinary action.

F. This Stipulation and Consent Order shall remain part of Respondent's licensing file and may be used in any further disciplinary proceeding.

G. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 7/14/11

by: [Signature]

Edward G. Adrian
State Prosecuting Attorney

BRIAN B. WILCOX
RESPONDENT

Dated: 7.13.11

by: [Signature]

Brian B. Wilcox

APPROVED AND SO ORDERED: VERMONT BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 7/21/11

by: [Signature]

Chairperson

MH005.soc.stip.wpd

Date Entered 7/21/11

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
National Life Building
Second Floor North
Montpelier, VT
05620-3602